

TENTATIVE RULINGS

DEPT. CM7

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TENTATIVE RULING

Date: 08/12/2026

Case #	Case Name	Tentative
01409718	Nenning - Trust	TENTATIVE RULING Case: Nenning - Trust 01409718 Calendar No: 1 Date: 08/12/26 MOTION TO ENFORCE SETTLEMENT AGREEMENT (ROA 31) Before the court is a motion by Petitioner Gregory M. Nenning ("Petitioner") for an order to enforce the parties' settlement agreement pursuant to Code of Civil Procedure section 664.6. Probate Code section 664.6 provides, as follows: "If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement." Code of Civil Procedure section 664.6 allows a party to obtain a judgment containing all materials terms of a settlement agreement not yet fully performed by the parties. (<i>Hines v. Lukes</i> (2008) 167 Cal.App.4th 1174, 1185; <i>Kilpatrick v. Beebe</i> (1990) 219 Cal.App.3d 1527, 1529 [Section 664.6 "do[es] nothing more than provide a streamlined method for reducing a stipulated settlement to judgment."].)

Here, Petitioner claims that Respondent Gail Maureen Booth ("Respondent") has failed to transfer title of specified shares of stock ("Trust Stock") to Petitioner pursuant to the parties' Settlement Agreement executed 5/27/25.

The Settlement Agreement contemplated a two-step process to effectuate the agreed upon stock transfer, as follows:

First, Gail shall have the shares comprising the Trust Stock placed/titled in her name as trustee of the Trust. To that end, within twenty-one (21) days of the Effective Date, Gail shall submit the information and/or documentation required to have the Trust Stock placed/titled in her name. **Gail shall act in good faith and use her best efforts to complete this process in ninety (90) days or less.**

Second, Gail shall have the shares comprising the Trust Stock transferred to Gregory. To that end, within twenty-one (21) days of receipt of notice or otherwise confirming that the Trust Stock has been placed/titled in her name as trustee of the Trust, Gail shall submit the information and/or documentation required to have the Trust Stock placed/titled in Gregory's name. **Gail shall act in good faith and use her best efforts to complete this process in ninety (90) days or less.** Gail shall notify Gregory's attorney, Jeffrey M. Hall, within seven (7) days of receipt of notice or otherwise confirming that the Trust Stock has been placed/titled in Gregory's name.

(ROA 25, Hall Decl., Ex. 1, pp. 5-6, emphasis added.)

On 7/15/26, Respondent filed a response to the instant motion in which she carefully outlined all the efforts she has taken to effectuate the transfer of Trust Stock. (ROA 39.) Respondent's outline correlates with the information her counsel shared with Petitioner's counsel as set forth in the Declaration of Jeffrey M. Hall. (ROA 25, ¶¶ 16-27.)

There is no evidence before the court that Respondent failed to act in good faith or failed to use her best efforts to comply with the terms of the Settlement Agreement requiring the transfer of Trust Stock. On the contrary, Respondent had a total of 10 meetings at two different branches of Chase Bank. After such meetings were unfruitful, Respondent opened new accounts with Bank of America and asked a friend that works

		at Bank of America for assistance. Petitioner's counsel was provided with updates of these efforts. Once Trust Stock was transferred to Respondent's name, she repeatedly requested that Mr. Hall provide her with Petitioner's information necessary to transfer the Trust Stock to Petitioner. Mr. Hall took almost two months to provide the information. While Petitioner is understandably unhappy that the transfer took longer than expected, he has not established that the delay was the result of any bad faith or neglect on the of Respondent. Based on the foregoing, the motion to enforce the Settlement Agreement is DENIED. Respondent's Opposition reflects appointments scheduled with Bank of America and Merrill Lynch on 7/16/26 to proceed with the stock transfer. Petitioner has not filed a Reply or withdrawn this motion. Counsel should be prepared to discuss the status of the stock transfer.
01487738	Sansky - Trust	TENTATIVE RULING Case: Sansky - Trust 01487738 Calendar No: 4 Date: 08/12/26 MOTION FOR SUMMARY JUDGMENT OR SUMMARY ADJUDICATION (ROA 26) Respondent Heather Sansky ("Respondent") moves for summary judgment or alternatively summary adjudication. (ROA 26.) The motion is DENIED. <u>Background</u> This case involves the Revocable Living Trust of The Stansky Family dated 7/23/08 (the "Trust") created by Bonnie Sansky ("Decedent") and Michael Sansky, both of whom have since passed away. On 6/4/25, Petitioner Angelie Hand ("Petitioner") filed a petition challenging the validity of the Trust based on allegations that Michael Sansky unduly influenced Decedent, that Decedent lacked capacity, and that Decedent's exclusion of Petitioner as a beneficiary of the Trust was a mistake of fact.